

The Capital of Punjab (Development and Regulation) (Chandigarh Amendment) Act, 1973

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UT Chandigarh - Act

The Capital of Punjab (Development and Regulation) (Chandigarh Amendment) Act, 1973

CHANDIGARH

India

The Capital of Punjab (Development and Regulation) (Chandigarh Amendment) Act, 1973

Act 17 of 1973

Published in Gazette of India on 9 April 1973

Not commenced

[This is the version of this document from 9 April 1973.]

[Note: The original publication document is not available and this content could not be verified.]

An Act further to amend the Capital of Punjab (Development and Regulation) Act, 1952, as in force in the Union territory of Chandigarh.

BE it enacted by Parliament in the Twenty-fourth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Capital of Punjab (Development and Regulation) (Chandigarh Amendment) Act, 1973.

(2)

It shall be deemed to have come into force on the 1st day of November, 1966 except section 7 which shall come into

force at once.

2.

[Punjab Act 37 of 1952.] Rep. by the Repealing and Amending Act, 1938 (17 of 1938), s. 2 and the First schedule (w.e.f. 26-11-1978).

3.

[Substitution of new sections for section 8.] Rep. by s. 2 and the First schedule, *ibid.* (w.e.f. 26-11-1978).

4.

[Omission of section 9.] Rep. by s. 2 and the First schedule, *ibid.* (w.e.f. 26-11-1978).

5.

[Amendment of section 10.] Rep. by s. 2 and the First schedule, *ibid.* (w.e.f. 26-11-1978).

6.

[Substitution of new section for section 19.] Rep. by s. 2 and the First schedule, *ibid.* (w.e.f. 26-11-1978).

7.

Validation.-

Notwithstanding any judgment, decree or order of any court, anything done or any action taken (including any notice issued, any order made for resumption of any site or building, or both, as the case may be, or any such resumption effected, or any order made for the forfeiture of any money or any money forfeited, or any order made for the recovery of any arrears or any arrears recovered, or any penalty imposed or recovered) or purported to have been done or taken under the principal Act shall, in so far as it is consistent with the provisions of the principal Act as amended by this Act, be deemed to be as valid and effective as if such thing or action was done or taken under the principal Act as amended by this Act, and accordingly no suit or other legal proceeding shall be maintained or continued in any court,-

(i)

for the recovery of any site or building, or both, as the case may be, which has or have been resumed; or

(ii)

for the cancellation of any order made for the resumption of any site or building, or both, as the case may be; or

(iii)

for the recovery of any money forfeited; or

(iv)

for the cancellation of any order made for the forfeiture of any money; or

(v)

for the refund of any arrears recovered; or

(vi)

for the cancellation of any order made for the recovery of any arrears; or

(vii)

for the refund of any penalty recovered; or

(viii)

for the cancellation of any order imposing any penalty.

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